

ALITO, J., dissenting

Legal Precedent: A Theoretical and Empirical Analysis, 19 J. Law & Econ. 249, 250 (1976).

Even though there was no opinion of the Court, the decision satisfies even the narrowest understanding of a precedent as this Court has understood the concept: The decision prescribes a particular outcome when all the conditions in a clearly defined set are met. See *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44, 67 (1996) (explaining that, at the very least, we are bound by the “result” in a prior case). In *Apodaca*, this means that when (1) a defendant is convicted in state court, (2) at least 10 of the 12 jurors vote to convict, and (3) the defendant argues that the conviction violates the Constitution because the vote was not unanimous, the challenge fails. A majority of the Justices in *Apodaca* expressly agreed on that result, and that result is a precedent that had to be followed in subsequent cases until *Apodaca* was overruled.

That this result constituted a precedent follows *a fortiori* from our cases holding that even our summary affirmances of lower court decisions are precedents for “the precise issues presented and necessarily decided” by the judgment below. *Mandel v. Bradley*, 432 U.S. 173, 176 (1977) (*per curiam*). If the *Apodaca* Court had summarily affirmed a state-court decision holding that a jury vote of 10 to 2 did not violate the Sixth Amendment, that summary disposition would be a precedent. Accordingly, it is impossible to see how a full-blown decision of this Court reaching the same result can be regarded as a non-precedent.¹²

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What do our three colleagues say in response? They begin by suggesting that Louisiana conceded that *Apodaca*

¹² It is true, of course, that a summary affirmance has less precedential value than a decision on the merits, see, e.g., *Comptroller of Treasury of Md. v. Wynne*, 575 U.S. 542, 560–561 (2015), but we have never said the same about decisions on the merits that were reached without an opinion of the Court.